

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2009-002143

ORDER OF SUMMARY SUSPENSION

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING
THE PRACTICE OF PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO BY VERNILLYN MARTZ, LICENSE NO. LPC 1221

The Colorado State Board of Licensed Professional Counselor Examiners ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS:

1. Vernillyn Martz ("Respondent") is currently licensed to practice professional counseling in the State of Colorado.
2. The Board has jurisdiction over the person of Respondent and the subject matter herein.
3. On December 19, 2008, based on credible evidence presented in a written incident report and other available information, the Board determined it had reasonable cause to believe that Respondent was unable to practice professional counseling with reasonable skill and safety to patients.
4. In a written Order Pursuant to § 12-43-224(2)(d), C.R.S., dated January 12, 2009, the Board ordered Respondent to contact Dr. James Oraker (hereinafter "Dr. Oraker"), no later than January 27, 2009 to schedule an appointment for a mental status examination to be conducted by Dr. Oraker, and to thereafter submit to a mental status evaluation by Dr. Oraker.
5. Pursuant to § 12-43-224(2)(e), C.R.S., as a licensed professional counselor, Respondent is deemed to have given her consent to submit to a mental status evaluation when directed by the Board, in writing, to submit to such evaluation.
6. Respondent has failed to contact Dr. Oraker to schedule an appointment for a mental status examination. Respondent has not complied with

the Board's January 12, 2009 Order. Respondent has not shown good cause for her failure to submit to the mental status evaluation.

7. Pursuant to § 12-43-224(2)(c), C.R.S., the Board is empowered to summarily suspend Respondent's license based on her failure to submit to a mental status evaluation after having been directed by the Board, in writing, to submit to such evaluation.

8. Respondent cannot engage in the practice of professional counseling in the State of Colorado, or hold herself out as a licensed professional counselor in the State of Colorado, while her license is suspended.

9. Any violation of this Order constitutes a violation of a lawful Board order, and may be grounds for further proceedings, including the imposition of penalties pursuant to § 12-43-226, C.R.S.

10. This Order does not resolve any other cases, complaints, or matters known, or unknown, to the Board or Respondent, as of the effective date of this Order.

11. This Order shall become effective when signed on behalf of the Board.

12. This Order shall be a public record in the custody of the Board.

IT IS THEREFORE ORDERED that the license of Vernillyn Martz to practice professional counseling in the State of Colorado is summarily suspended.

Dated this 6th day of May, 2009.

CARLOTTA KNOX

Carlotta Knox
Program Director